

Amendment No. 1 to SB2485

White

Signature of Sponsor

AMEND Senate Bill No. 2485*

House Bill No. 2410

by deleting subsection (b) in Section 1 and substituting:

(b) An LEA or public charter school shall not use a video camera surveillance system to continuously monitor students, teachers, and staff in a special education classroom unless:

(1) All teachers and staff that provide special education or related services in the special education classroom consent, in writing, to being continuously monitored using the system while they are providing special education or related services in the special education classroom; and

(2) The parents of a majority of the students assigned to receive special education or related services in the special education classroom consent, in writing, to the parent's student being continuously monitored using the system while they are receiving special education or related services in the special education classroom.

AND FURTHER AMEND by designating subsection (f) in Section 1 as subsection (g) and adding the following as a new subsection (f):

(f) If the parent of a student assigned to receive special education or related services in the special education classroom in which a video camera surveillance system has been installed does not consent, in writing, to the parent's student being continuously monitored using the system while the parent's student is receiving special education or related services in the special education classroom, then the LEA or public charter school shall not use, refer to, or rely on any photograph or recording made using the video camera surveillance system that features the nonconsenting parent's student for any purpose, including, but not limited to, the discipline, assignment, or placement of the nonconsenting parent's student.